

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPP061055: MARIA DEL SOCORRO FLORES DE LOPEZ, et al. vs DIGNITY
HEALTH, et al.**

**08/18/2026 in Department 41
Motion to Compel Arbitration**

Petition to Compel Arbitration; Request to Stay Action (*opposed*).

DENY Petition to Compel Arbitration

DENY Request to Stay Action

Defendant failed to meet its burden of showing that the parties have a valid arbitration agreement.

Defendant Oxnard Manor LP DBA Oxnard Manor Healthcare Center petitions the Court for an order staying the present action and compelling binding arbitration. This Petition is made on the grounds that Defendants seek to enforce a contractual arbitration clause. When decedent Ms. De Lopez was admitted to Oxnard Manor on January 17, 2025, she executed an Arbitration Agreement. The arbitration agreement is valid and enforceable against each Plaintiff.

In the Opposition, Plaintiff contends Defendant Oxnard Manor failed to meet its burden to prove a valid, authenticated agreement to arbitrate. The delegation clause does not deprive this court of authority to decide this case. In addition, even if Defendant Oxnard Manor could prove a signature, Ms. De Lopez lacked the capacity to waive her right to jury trial. Moreover, the non-signatory wrongful death heirs cannot be required to arbitrate their case since their claims sound in custodial neglect and elder abuse. Finally, the likelihood of conflicting rulings with respect to Defendant Dignity Health, warrants denial of this motion.

In Reply, Plaintiff contends the agreement is valid and enforceable. Moreover, the wrongful death claims are arbitrable under *Holland v Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, which makes clear that wrongful death claims can be subject to arbitration when the underlying claim is for professional negligence, as opposed to custodial negligence.

“The question of whether the parties agreed to arbitrate is answered by applying state contract law even when it is alleged that the agreement is covered by the FAA.” (*Cheng-Canindin v. Renaissance Hotel Associates* (1996) 50 Cal.App.4th 676, 683, see also *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 787 [“California law governs the determination as to whether an agreement was reached”].)

“Under California law, the question whether an arbitration agreement is unenforceable, in whole or in part, based on general contract law principles is a question for the court to decide, rather than an arbitrator.” (*Sanchez v. Western Pizza Enterprises, Inc.* (2009) 172 Cal.App.4th 154, 165.) “‘An essential element of any contract is the consent of the parties, or mutual assent.’ [Citation.] [Citation]. Further, the consent of the parties to a contract must be communicated by

each party to the other. [Citation] Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.’ [Citations].” (*Esparza v. Sand & Sea, Inc.*, *supra*, 2 Cal.App.5th 781, 788.) “Although ‘California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration,’ [citation] there is no public policy ‘that favors the arbitration of disputes the parties did not agree to arbitrate. [Citation.]’ [Citation]. The party opposing arbitration has the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 764.)

“It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it.’ [Citations].” (*Randas v. YMCA of Metropolitan Los Angeles* (1993) 17 Cal.App.4th 158, 163.) In addition, in *Bolanos v. Khalatian* (1991) 231 Cal.App.3d 1586, 1590, the Court stated: “Since the agreement here is not one of adhesion, the general rule, that one who signs an agreement cannot avoid its terms on the ground that he failed to read it, is applicable. [Citations]. When a person with the capacity of reading and understanding an instrument signs it, he may not, in the absence of fraud, coercion or excusable neglect, avoid its terms on the ground he failed to read it before signing it.”

Code of Civil Procedure section 1281.4 provides, in relevant part: “If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) “The purpose of the statutory stay [under section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. [Citations.] [¶] In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374-1375.) Even “a single overlapping issue is sufficient to require imposition of a stay.” (*Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1153; see also *Coast Plaza Doctors Hospital v. Blue Cross of Calif.* (2000) 83 Cal.App.4th 677, 693 [staying all non-arbitral claims other than for injunction]; *Federal Insurance Co.*, *supra*, 60 Cal.App.4th at p. 1374 [stay required where continuation of proceedings in the trial court “disrupts” arbitration proceedings and “can” render those proceedings ineffective].)

“Under section 1281.2, a trial court must grant a motion or petition to compel arbitration only ‘if it determines that an agreement to arbitrate the controversy exists.’ The court makes this determination in a summary process. [Citation]. ‘[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.’ [Citation].” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164, citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

“The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Engalla v. Permanente Medical Group, Inc.*, *supra*, 15 Cal.4th 951, 972.)

“[T]he burden of production may shift in a three-step process.” (*Gamboa v. Northeast Community Clinic*, *supra*, 72 Cal.App.5th 158, 165.) “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ [Citation]. The moving party ‘can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.’ [Citation]. Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion.” (*Ibid.*) “If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation]. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [Citations].” (*Ibid.*) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party. [Citation].” (*Id.* at pp. 165-166.)

The Declaration of Lauren Villasenor attached as Exhibit A, the e-signed Arbitration Agreement. Ms. Villasenor states: “The Arbitration Agreement (“Agreement”) was executed by Ms. De Lopez. It is my custom and practice to explain the arbitration agreement and admission documents to, among others, the residents prior to obtaining their signature on the Agreement. (Villasenor Dec., ¶ 5.) “Since Ms. De Lopez was not fluent in English, I explained and read the terms of Agreement to Ms. De Lopez and Ms. De Lopez' daughter. Ms. De Lopez' daughter translated what I was saying into Spanish, so Ms. De Lopez was able to comprehend and understand what she was signing.” (Villasenor Dec., ¶ 6.) “It is my custom and practice to not enter the resident's e-signature on the Agreement until the patient has provide me with authorization to do so. Ms. De Lopez provided me with authorization to have the Agreement e-signed.” (Villasenor Dec., ¶ 7.) As part of the admissions paperwork process, I explained the Agreement to Ms. De Lopez and her daughter, and her daughter translated my statements. Among other things, I explained that by signing the Agreement, Ms. De Lopez and her heirs were giving up their right to a jury or court trial. I also explained that the Agreement was voluntary, and that signing the Agreement was not a condition of admission to OM, as stated on the first page of the Agreement at the very top of the page, and as stated in Section 12.2 of the Agreement.” (Villasenor Dec., ¶ 8.) “I further explained, as stated in Section 6.1 of the Agreement, that Ms. De Lopez could change her mind and revoke the Agreement within in 30 days of the Agreement being executed.” (Villasenor Dec., ¶ 9.) “Ms. De Lopez never informed me nor expressed to me, nor did I hear from her daughter, that Ms. De Lopez wanted to revoke the signed Agreement. Nor to my knowledge did she ever inform any OM staff member that she wanted to revoke the signed Agreement.” (Villasenor Dec., ¶ 10.) “At the time of signing the Agreement, Ms. De Lopez appeared to be coherent, aware, and understood the instructions I relayed.” (Villasenor Dec., ¶ 10.)

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“A record or signature may not be denied legal effect or enforceability solely because it is in electronic form.” (Civ. Code, § 1633.7, subd. (a).) “An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” (Civ. Code, § 1633.9, subd. (a).)

In *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, the court found that a conclusory statement by the business manager that the electronic signature was attributable to a person was insufficient since she did not explain how she arrived at that conclusion. (*Id.* at p. 843.)

Ms. Villasenor states that “Ms. De Lopez provided me with authorization to have the Agreement e-signed.” (Villasenor Dec., ¶ 7.) However, she also stated that Ms. De Lopez was not fluent in English. (Villasenor Dec., ¶ 6.) Defendant has not provided sufficient information as required by Civil Code section 1633.9 for the Court to determine that this was Ms. De Lopez’s signature and that she consented to the agreement.

The Declaration of Luis Joel Flores, the son of Ms. De Lopez, also disputes the agreement and signature of his mother to the agreement. He states that his mother’s condition was poor at the facility. (Flores Dec., ¶ 7.) He states that on the purported date of the signature, he was present and did not see his mother e-sign the document. (Flores Dec., ¶ 8.) He further states that he had never seen the arbitration agreement. (Flores Dec., ¶ 10.) He also states that his mother would not be able to electronically sign by herself without assistance and the facility never asked any of her family to assist with the electronic signature. (Flores Dec., ¶ 11.)

The Supplemental Declaration of Lauren Villasenor states that she aided Ms. De Lopez throughout the admissions process. (Villasenor Dec., ¶ 3.) She states that Ms. De Lopez’s son was not present when she assisted Ms. De Lopez with the paperwork on January 29, 2026, which included the arbitration document. (Villasenor Dec., ¶ 6.) She further states that at the time of signing the document, Ms. De Lopez did not appear to be in distress. (Villasenor Dec., ¶ 9.)

Given the dispute regarding the validity of the electronic signature, Defendant Oxnard Manor, LP had the burden of proving by a preponderance of the evidence that the electronic signature was authentic and it was the signature claimed by Defendant. (*Ruiz v. Moss Bros. Auto Group, Inc.*, *supra*, 232 Cal.App.4th at 846.) The Declaration of Ms. Villasenor is insufficient to meet this burden.

Accordingly, the Court finds that Defendant Oxnard failed to meet this initial burden, which warrants denial of the motion.

“Because unconscionability is a reason for refusing to enforce contracts generally, it is also a valid reason for refusing to enforce an arbitration agreement under Code of Civil Procedure section 1281, which, as noted, provides that arbitration agreements are ‘valid, enforceable and irrevocable, save upon such grounds as exist [at law or in equity] for the revocation of any

contract.’ [Citation].” (*Armendariz v. Foundation Health Psychcare Servs. Inc.* (2000) 24 Cal.4th 83, 114.)

“‘The general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party. [Citation.] Under this standard, the unconscionability doctrine “has both a procedural and a substantive element.’ [Citation.] ‘The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. [Citations.] Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.’ [Citation.]” (*Ali v. Daylight Transport, LLC* (2020) 59 Cal.App.5th 462, 471 [*Ali*]).) ““‘[G]enerally applicable contract defenses, such as... unconscionability, may be applied to invalidate arbitration agreements without contravening’ the FAA” or California law. [Citations.]” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’ [Citation.] Instead, they are evaluated on “a sliding scale.’ [Citation.] ‘[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to’ conclude that the term is unenforceable. [Citation.] Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required. [Citations.] A contract’s substantive fairness ‘must be considered in light of any procedural unconscionability’ in its making. [Citation.] ‘The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.’ [Citation.]” (*Ali, supra*, 59 Cal.App.5th at pp. 471-472.)

“An evaluation of unconscionability is highly dependent on context. [Citation]. The doctrine often requires inquiry into the ‘commercial setting, purpose, and effect’ of the contract or contract provision. [Citations]. As we have recognized, ““a contract can provide a “margin of safety” that provides the party with superior bargaining strength a type of extra protection for which it has a legitimate commercial need without being unconscionable.”” [Citations]. And, as noted, the substantive unfairness of the terms must be considered considering any procedural unconscionability. The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Sanchez v. Valencia Holding Company, LLC, supra*, 61 Cal.4th 899, 911-912.)

“‘The burden of proving unconscionability rests upon the party asserting it. [Citations.] ...’ [Citation.]” (*Ali, supra*, 59 Cal.App.5th at p. 472.)

Courts have found that the failure to provide translations to Spanish speaking residents was procedurally unconscionable. (See *Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 214-217.) Here, Ms. De Lopez was asked to sign an English document and the only translation provided was by her daughter on an informal basis. (Villasenor Dec., ¶ 6.)

Further, Section 2.2 of the Agreement states: “Notwithstanding anything in this section, this Agreement shall not govern disputes pertaining to, collections, evictions, including any appeals

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made by Resident concerning his/her transfer or discharge, or to any dispute not justiciable in a court of law.” (Villasenor Dec., Ex. A.) This provision is substantively unconscionable since it only insures to the benefit of Defendant. (See *Martinez v. Master Protection Corporation* (2004) 118 Cal.App.4th 107, 114 [substantive unconscionability if only one party required to arbitrate].)

Therefore, the motion is denied on this separate ground.

The Court in *Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, addressed whether wrongful death claimants, who did not sign arbitration agreements, are required to arbitrate their claim. The Court stated: “We conclude that the Court of Appeal’s decision in this case extends Ruiz past statutory bounds. *Ruiz* does not apply to every type of wrongful death claim that might be brought against a health care provider — particularly a provider that, like the skilled nursing facility in this case, provides both medical care and day-to-day custodial care of dependent adults. Under *Ruiz*, plaintiffs’ claim must be submitted to arbitration only if they are raising a dispute about medical malpractice as that term is defined in MICRA’s arbitration provision — that is, a dispute “as to whether any medical services ... were improperly, negligently or incompetently rendered.” [Citation]. *Ruiz* does not require plaintiffs to arbitrate their disputes about a facility’s neglect of a resident’s basic welfare and safety needs.” (*Id.* at pp. 370-371.)

Here, the 4th cause of action for Wrongful Death is based on Defendants’ negligence and neglect of Ms. De Lopez as alleged in the Complaint. (Compl., ¶ 46.) The claims against Defendant Oxnard Manor are primary related to their custodial care of Ms. De Lopez. Therefore, under *Holland v. Silverscreen Healthcare, Inc.*, *supra*, 18 Cal.5th 364, the wrongful death claim is not subject to arbitration.

Accordingly, under Code of Civil Procedure section 1281.2, subdivision (c), since “there is a possibility of conflicting rulings on a common issue of law or fact,” if certain claim is sent to arbitration while this cause of action is not, the court may deny arbitration.

Defendant finally argues that the arbitration question must be decided by the arbitrator. “[P]arties may delegate threshold arbitrability questions to the arbitrator, so long as the parties’ agreement does so by ‘clear and unmistakable’ evidence. [Citations]. To be sure, before referring a dispute to an arbitrator, the court determines whether a valid arbitration agreement exists.” (*Henry Schein, Inc. v. Archer and White Sales, Inc.* (2019) 586 U.S. 63, 69; 139 S.Ct. 524, 530.) Since the prior discussions establish that Defendant failed to show that a valid arbitration agreement exists, the delegation clause has no application.